

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Samba Diakite, :: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Andres Uribe, Shield 24649 of PSA 7 and :
New York City Police Officers John Doe, :: Plaintiff's residence is:
1385 Washington Avenue
: Bronx, NY 10456

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: July 13, 2022
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Andres Uribe, Shield 24649 of PSA 7

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
Samba Diakite,	:	
	:	
Plaintiffs	:	VERIFIED COMPLAINT
	:	
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Andres Uribe, Shield 24649 of PSA 7 and	:	
New York City Police Officers John Doe,	:	
	:	
Defendants	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Samba Diakite, (hereinafter referred to as “DIAKITE”) resides in Bronx, State of New York.

2. That at all times hereinafter mentioned, Police Officer Andres Uribe, Shield 24649 of PSA 7 (hereinafter referred to as “URIBE”) was employed by the New York City Police Department.

3. That at all times hereinafter mentioned, the New York City Police Officers John Doe, involved in the assault and battery on and of Plaintiff (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Defendant City of New York, is a

municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or before about July 26, 2021 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. That on or about November 2, 2021 a hearing required by Municipal Law 50-H was held. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about July 17, 2021 at approximately 5:00PM in the vicinity of East 143 Street and Grand Concourse, Bronx, NY Plaintiff was arrested by URIBE and DOES.

9. That at the time of the arrest Plaintiff did not resist his arrest.

10. That at the time of Plaintiff's arrest, Plaintiff did not use force or attempt to use force against URIBE or DOES.

11. That URIBE and DOES grabbed Plaintiff and slammed him to the ground prior to Plaintiff's arrest.

12. That there was no lawful reason to slam Plaintiff to the ground.

13. That slamming Plaintiff to the ground constituted excessive force and unreasonable force.

14. That as a result of the actions of URIBE and DOES Plaintiff sustained a fracture to his right wrist and one of his left fingers causing him to seek medical attention at a local Bronx hospital.

15. That Plaintiff had requested to go to the hospital prior to being brought to the precinct and his request was denied.

16. That Plaintiff, while at the PSA 7 precinct, had requested to go to the hospital prior to being brought to Central Booking and the request was denied.

AS AND FOR A FIRST CAUSE OF ACTION FOR EXCESSIVE FORCE

17. That this Plaintiff repeats and reiterates each and every allegation contained in the proceeding paragraphs as if set forth more fully at length hereinafter.

18. That as a result of those actions by the Defendants as set forth hereinabove, including the use of excessive physical force and intentional infliction of physical and emotional harm upon the Plaintiff, the defendants URIBE and DOES deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendment.

19. As a result of those actions by the Defendants as set forth herein above, these defendants individually deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

20. As a result of those actions by the Defendants as set forth hereinabove, including the patently offensive physical conduct and threatening remarks made by defendants

during the aforementioned use of excessive force and intentional infliction of emotional and physical harm upon Plaintiff, these defendants individually deprived Plaintiff of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendment.

21. That the amount and type of physical force used upon Plaintiff by these defendants, and all injuries sustained therefrom, was unnecessary, improper, excessive and not reasonably justified under any circumstances.

22. The aforementioned actions by the Defendants constitute constitutional violations and are all actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985 and 1986 that those actions by the defendants as set forth hereinabove were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

23. That as a result of the actions of the Defendants as set forth hereinabove, the Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution.

24. That based upon the foregoing, the Plaintiff was caused to sustain damages in an amount not to exceed the jurisdictional limits of courts conferring jurisdiction hereof.

THIRD CAUSE OF ACTION FOR ASSAULT

25. That Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

26. As a result of the foregoing, defendants, individually and/or vicariously, by and

through their agents, servants and employees, placed Plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him.

27. That based upon the foregoing, the Plaintiff was caused to sustain damages in an amount not to exceed the jurisdictional limits of courts conferring jurisdiction hereof.

FOURTH CAUSE OF ACTION FOR BATTERY

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

29. As a result of the foregoing, Plaintiff was without just cause or provocation, maliciously, and intentionally battered, emotionally, physically and psychologically abused causing serious psychological and emotional harm to Plaintiff.

30. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered and physically abused Plaintiff causing serious injury to Plaintiff.

31. That the occurrence and injuries sustained by Plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the Plaintiff, contributing thereto.

32. That based upon the foregoing, the Plaintiff was caused to sustain damages in an amount not to exceed the jurisdictional limits of courts conferring jurisdiction hereof.

FIFTH CAUSE OF ACTION FOR NEGLIGENT SUPERVISION AND RETENTION

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

34. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers.

35. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers.

36. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers.

37. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

38. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying

out their official duties and/or responsibilities prior to the date of the incident complained of herein.

39. That at the time and place aforesaid, the defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, psychologically abused, attacked, threatened, intimidated, falsely arrested and imprisoned Plaintiff causing serious personal injury to Plaintiff.

40. That the occurrence and injuries sustained by Plaintiff, were caused solely by, and as A result of the malicious, reckless, negligent, and/or intentional conduct of the defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees as set forth above, without any provocation on the part of the Plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department.

41. That based upon the foregoing, the Plaintiff was caused to sustain damages in an amount not to exceed the jurisdictional limits of courts conferring jurisdiction hereof.

SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

42. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

43. That the aforesaid occurrence and resulting injuries to Plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the individual defendants URIBE and DOES.

44. That the aforesaid occurrence and resulting injuries to Plaintiff were due to the Conduct of these defendants which reflects an utter indifference to the safety and well-being of others and specifically the safety and well-being of Plaintiff.

45. That the conduct of these individual defendants exhibited a reckless disregard for human life and the safety and well-being of others and more particularly, for the life, safety and well-being of Plaintiff.

46. That based upon the foregoing, the Plaintiff was caused to sustain damages in an amount not to exceed the jurisdictional limits of courts conferring jurisdiction hereof.

WHEREFORE, it is the prayer of this Plaintiff that a money judgment be entered as against the Defendants for each and every cause of action set forth herein and in an amount not to exceed the jurisdictional limits of those courts conferring jurisdiction hereof.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger

Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the Plaintiff is because the Plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the Plaintiff, review of records and documents within affirmant's possession.

Affirmed: July 13, 2022

Jason Steinberger

Jason A. Steinberger